



OFFICIAL

Holding Orders Procedure

1. Applicability

Site	Operational Area	Applicable to
Armada Health Service	Paediatrics and Neonates	Medical Nursing and Midwifery

2. Purpose

This policy outlines the principles in the application of the *Children and Community Services Act 2004* Section 40: Power to keep child under 6 years of age in hospital. This document should be read in conjunction with the [Guidelines for Protecting Children 2020](#).

3. Scope

This document is applicable to all paediatric patients aged under six (6) years of age who present and/or are admitted to the Armada Health Service (AHS), where there are reasonable grounds that the child is in need of protection as defined in the *Children and Community Services Act 2004*.

Section 40 does not alter any guardianship rights, and it does not deny parents' access to their child, it only determines that the child needs to remain in hospital.

4. Background

When a child (aged under six years of age) presents to the AHS for observation, assessment or treatment or is admitted to the hospital; and the officer in charge believes on reasonable grounds that the child is in need of protection, then the officer in charge may keep the child in the hospital for the purpose of observation, assessment or treatment or otherwise to safeguard or promote the wellbeing of the child.

This is referred to as a Holding Order and is an option of last resort under the *Children and Community Services Act 2004*.

Children and Community Services Act 2004 – Officer in Charge defined as:

The [Children and Community Services Act 2004](#) defines the officer in charge, in relation to a hospital, as the person for the time being in charge of the hospital (s.40).

During business hours this will be the Executive Director Armada Kalamunda Group; and out of hours will be the Senior Responder on Call (SROC).

5. Guiding principles

The following guiding principles apply when applying for a Holding Order:

- A child may not be kept in hospital under a Holding Order for more than two (2) working days
- The decision to request a Holding Order is made in conjunction with the following key stakeholders:
 - Paediatric Consultant
 - Social Worker
 - Nurse Unit Manager-Paediatrics and Neonates (in office hours); or Crisis Care (out of hours).
- At a minimum, the assessment to determine whether a Holding Order should be requested must include:
 - An indication of actual abuse and/or immediate risk of abuse
 - An indication of diminished capacity of the parent/carer to safely care for the child.
- The decision to invoke a Holding Order is to be authorised by the Officer in Charge in accordance with s.40 of the *Children and Community Service Act 2004*.
Where the Officer in Charge was not the Executive Director Armada Kalamunda Group (i.e. SROC during afterhours period), they are responsible for notifying the Executive Director Armada Kalamunda Group of the decision to authorise a holding order, in writing, within 24 hours of the decision.
- Parents / carers are to be informed of this decision by the Paediatrician managing the child's care or the hospital Social Worker during business hours, and the officer in charge during the afterhours period.
- Parents / carers are to be given written confirmation of this decision – refer to the [Supporting Information](#) section of this policy for letter templates. A copy of this letter is to be filed in the child's healthcare record.

Aboriginal people's considerations:

Where the patient and family identify as Aboriginal, consideration should be given to consulting with an Aboriginal Health Liaison Officer to:

- Support a culturally appropriate approach to communication of the decision
- Assistance in contacting the patient's family members.

- The relevant office of the Department of Communities (Child Protection and Family Support) (DCPFS) is to be notified immediately in office hours by the hospital Senior Social Worker that a Holding Order is invoked. Outside of business hours the Nurse Manager-After Hours should notify Crisis Care on (08) 9223 1111 or 1800 199 008 (country free call).
- Security are to be notified immediately by nursing staff of the Holding Order and given relevant essential information. This may be done prior to informing the parents/carers if the staff have any concerns.
- The DCPFS determines the amount of contact parent/carers may have with the child subject to a Holding Order. Ward staff should liaise with the Senior Social Worker and consult the healthcare record for details of the order.

- If threats are made to remove the child from the hospital, notify Security immediately, stay calm, deescalate and reinforce that the Holding Order is a legal document and removal of the child is likely to jeopardise future care.
- If the child is removed from the hospital a Code Black Alpha is to be activated and the treating Paediatrician, Social Worker (in office hours) or Crisis Care (out of hours) are to be notified immediately.

6. Roles and responsibilities

The following outlines the specific roles and responsibilities relevant to this policy:

Role	Responsibility
Executive Director Armada Kalamunda Group	• Be aware of their responsibility and authority under s.40 of the <i>Children and Community Services Act 2004</i>. • Ensure there is sufficient evidence to support reasonable grounds for invoking s.40 of the <i>Children and Community Services Act 2004</i> prior to authorisation. • Confirm in writing the authorisation of a Holding Order in accordance with s.40 of the <i>Children and Community Services Act 2004</i> as soon as practicable following the decision being made. • Ensure that there is confirmation that the child is not kept in the hospital under s.40 of the <i>Children and Community Services Act 2004</i> for more than two (2) working days.
Senior Responder on Call (SROC)	• Be aware of their responsibility and authority under s.40 of the <i>Children and Community Services Act 2004</i>. • Ensure there is sufficient evidence to support reasonable grounds for invoking s.40 of the <i>Children and Community Services Act 2004</i> prior to authorisation. • Confirm in writing the authorisation of a Holding Order in accordance with s.40 of the <i>Children and Community Services Act 2004</i> as soon as practicable following the decision being made to the parent/carer and the Executive Director Armada Kalamunda Group.
Paediatrician	• Provide sufficient evidence to support the officer in charge in decision-making for authorisation of a Holding Order under s.40 of the <i>Children and Community Services Act 2004</i>. • Engage with the parent/carer in the decision-making process for the authorisation of a Holding Order, as much as practicable.

7. Compliance monitoring

Compliance against this policy will be monitored by the Clinical Outcomes Committee.

Compliance monitoring activities relevant to this policy include:

- Audit of documentation and decision-making following the authorisation of a Holding Order
- Monitoring of Sentry Security reporting to identify any attempted breaches of the Holding Order by the parent/carer.

8. Legislative context

The following documents are required to give effect to this policy:

- Legislation
 - [Children and Community Services Act 2004](#)
- HDWA
 - [Mandatory Reporting of Child Sexual Abuse Training Policy MP0166/21](#)
- EMHS
 - [Special Referral to Children Health Services Policy \(EMHS:188\)](#)
- CAHS
 - [Guidelines for Protecting Children 2020](#).

9. Supporting information

The following documents support the implementation of this policy:

- HDWA
 - [Guidelines for Protecting Children 2020](#)
- AKG
 - [Code Black – Emergency Response Plan](#)
 - [AKG Section 40 letter template – Notification of decision to parent\(s\)/guardian](#) (see templates under Paediatrics)
 - [AKG Section 40 letter template – Notification of decision to DCPFS](#) (see templates under Paediatrics)

10. Relevant standards

National Safety and Quality Health Service (NSQHS) Standards (second edition):

- Standard 1 – Action 1.06
- Standard 5 – Action 5.10, 5.11, 5.33, 5.34

11. Policy contact

Enquiries relating to this policy may be directed to:

Title: Head of Department Paediatrics and Neonates
 Department: Paediatrics and Neonates
 Email: mayakaduwe.karunanayake@health.wa.gov.au

12. Review

This policy will be reviewed and evaluated as required to ensure relevance and currency. At a minimum it will be reviewed within one (1) year after first issue and at least every three (3) years thereafter.

Version	Effective from	Effective to	Amendment(s)
V3	02 12 2025	02 12 2028	Full review; updated link to code black and document owner changed.

13. Authorisation

This policy has been authorised and issued by:

Authorised by	Dr John O'Hare - Deputy Director Clinical Services
Authorisation date	01 12 2025
Published date	02 12 2025